

Pozitive Energy Limited

Broker Acquisition & Renewal Energy Script for verbal contracts.

Before we begin, I must make you aware that this call is being recorded for quality assurance and compliance purposes and will be provided to **Pozitive Energy Limited**. Is there anything at all that you wish to clarify or include on this recording from any previous conversations or correspondence?

Allow time for the customer to answer this question or ask him to confirm that he is happy to proceed.

In order for us to secure your [Gas/Electricity] supply with **Pozitive Energy Limited**, I need to run through some important points with you. My name is [your name, your organisation], do you understand that we are an independent utility [Broker/Consultant/Partner] and are not directly employed by **Pozitive Energy Limited**?

Please wait for the customer to confirm before continuing

Can you confirm that you give me the authority to work on your behalf for the purpose of arranging your [Gas/Electricity] supply agreement with **Pozitive Energy Limited**?

Please wait for the customer to confirm before continuing

To start, I must make you aware that **Pozitive Energy Limited's** terms and conditions and privacy policy which includes their compliancy with GDPR is available at www.pozitive.energy. By entering into a contract with **Pozitive Energy Limited**, you fully agree to these terms and conditions as stated on their website. Are you happy for me to continue with this call and create your contract?

Please wait for the customer to confirm before continuing

The intention of this call is to set up a legally binding verbal commercial [Gas/Electricity] supply contract between **Pozitive Energy Limited** and [Customer's Business Name]. This should take approximately 8 minutes. I need to confirm for the recording that today's date is [today's date: DD/MM/YYYY] and the time is [Current Time]. **Pozitive Energy Limited** would like to confirm if you are a Micro Business or not. Please answer yes or no to the following questions:

- Do you employ fewer than 10 employees and have a turnover of less than two million euros (as of the 4th July 2018, this is approximately £1,769,200)?

Please wait for the customer to confirm before continuing

- Do you consume less than 100,000 kWh's of electricity per year?

Please wait for the customer to confirm before continuing

- If it is a gas contract: Do you consume less than 293,000 kWh's of gas per year?

Please wait for the customer to confirm before continuing

- Can you confirm your first and last name and that you are authorised to change your energy supplier on behalf of [Customer's Business Name] and enter into a contract for the supply of [gas/electricity]

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

You are now agreeing to change your [Gas/Electricity] supply to **Positive Energy Limited** at [Unit Rates] pence per kWh with a standing charge of [Standing Charge] pence per day, and if applicable, a Capacity Charge of [pence per kVA, per day] and the contract will last for [Contract Period/Bespoke End Date] year/s at these prices. Can you confirm that you understand these prices and that you agree to be bound by them for the length of the contract?

Please wait for the customer to confirm before continuing

The above prices have been based on an Estimated Annual Consumption/Annual Quantity of [EAC/AQ], and I must make you aware that this figure may be used for any estimated billing that may be required. These prices are also specific to the meter which carries the [electricity] Meter Point Access Number/[gas] Meter Point Reference Number: [electricity] eg 03 801 123 15 1234 4567 789/[gas] eg 123456789

There is no additional cost for **Positive Energy Limited** to provide MOp/DA/DC services. Are you happy to allow **Positive Energy Limited** to appoint their default MOp/DA/DC partner to provide these services, or do you have a third-party contract with another company to provide these services, to whom you will pay directly?

Please wait for the customer to confirm before continuing. If the customer does have a third-party contract for these services, please ask them to state clearly who the contract is with.

For you to enter into a/an [Gas/Electricity] supply contract via the telephone, I must confirm the following: -

- Please can you state the correct legal name of the company occupying the premises?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

- Please can you state the full premises address including the post code?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

- Please can you state your position in the organisation?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

- Can you please state your contact telephone number?

Please wait for the customer to confirm before continuing

- Can you please state your email address?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

- In addition to the details you have just provided, can you please supply the full name, email address and telephone number of the person who will be responsible for the day to day to care of your energy account. This will be the first “port of call” for **Positive Energy Limited** to contact [Customer’s Business Name] directly. This will also be the person who will receive email notifications, which will include an

alert that your invoice is ready to be viewed within your Customer Portal. **Positive Energy Limited** may also call you to validate this verbal contract as part of their quality and assurance checks. If this person will be yourself, please reconfirm your details.

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

- Can you confirm that you have sent a valid termination notice to your current supplier, or that you agree to submit a termination notice in line with your current supplier's terms and conditions?

Please wait for the customer to confirm before continuing

I must make you aware that failure to provide a valid termination notice to your current supplier may delay the transfer of your energy supply to **Positive Energy Limited**. Likewise, any outstanding balance that may be on your account may also delay the transfer of your energy supply.

- Can you confirm that the premises due to be supplied by **Positive Energy Limited** is either a Freehold property owned by yourself, or if you are leasing the premises from a third party?

Please wait for the customer to confirm before continuing

If it is a lease agreement. Can you please supply the name of your Landlord, email address and telephone number?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

Your contract will be eligible for renewal 180 days from your contract end date. **Positive Energy Limited** will write to you with details of your renewal offer no later than 60 days before your contract ends. If you decide to switch your energy supply away from **Positive Energy Limited**, you'll need provide 30 days written notice. Full details regarding renewing or terminating your contract with **Positive Energy Limited** can be found within their terms and conditions on their website: www.positive.energy. If you have not switched supplier or renewed your [gas/electricity] contract after the term of the contract has passed, you will be placed onto **Positive Energy Limited's** Variable Price Plan. The Variable Price Plan is not fixed, and **Positive Energy Limited** retain the right to alter this plan at any time by providing 30 days' notice. Are you happy to proceed with the creation of this verbal contract?

Please wait for the customer to confirm before continuing

The acceptance of this contract is subject to status. **Positive Energy Limited** will provide your company details to a licensed credit and fraud prevention agency. A copy of the credit search will be kept by the agency and may be used by other credit providers. If a person provides false or inaccurate information and **Positive Energy Limited** suspect fraud, this is recorded and may be used by **Positive Energy Limited** and/or organisations for financial security purposes. Further details explaining how your information may be used is given in **Positive Energy Limited** T&C's and Privacy Policy at their website www.positive.energy. **Positive Energy Limited** will contact your Energy Broker [your organisations name] if they are dissatisfied with your credit report.

For Sole Traders/Partnerships/Clubs & Organisations/Non-Profit Making Organisations (please move to Ltd Companies/Charities section if the company type is none of the aforementioned)

- Can you please state your full first, middle and surname (not Tony for Anthony, or initials)

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood

- Can you please state your Date of Birth (must be over 18)

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood

- Can you please state your current home address and the length of time you have lived there?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood

- If they have lived at their current address for less than 5 years. Can you please state your previous home address?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood. Please move to the paragraph below the dotted line if you have completed this section.

For Ltd Companies/Charities

- Can you please state your Business/Company/Charity registration number

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

I'd just like to assure you that **Positive Energy Limited** has requested this information for credit vetting purposes and does not pass or sell on your information to any organisation/s for marketing reasons.

We are now verbally going to create your Direct Debit Mandate:

- Can you please confirm the Account Name of the account you wish to be debited?

Please wait for the customer to clearly state this before continuing and ask the customer to spell out any words that you feel may be misinterpreted or misunderstood.

- Can you please confirm the Account Number of the account you wish to be debited. Can you leave a small pause between reading out each digit please?

Please wait for the customer to clearly state this before continuing

- Can you please confirm the Bank Sort Code of the account you wish to be debited. Can you leave a small pause between reading out each digit please?

Please wait for the customer to clearly state this before continuing

Thank you for confirming your bank details for the sole purpose of creating a Direct Debit Mandate. **Positive Energy Limited** will verify your Direct Debit Details shortly after accepting your contract. If the information supplied for the creation of a Direct Debit Mandate fails the verification process, **Positive Energy Limited** will contact you directly to inform you of this. If a Direct Debit mandate is not created for when your supply commences, **Positive Energy Limited** may place your account onto their Variable Standard Rate until a new Direct Debit mandate is accepted and verified.

As you have provided information for the purposes of creating a Direct Debit mandate with **Positive Energy Limited**, I will read out the Direct Debit Guarantee:

- The Guarantee is offered by all banks and building societies that accept instructions to pay Direct Debits
- If there are any changes to the amount, date or frequency of your Direct Debit the organisation will notify you (normally between 7 to 10 working days) in advance of your account being debited or as otherwise agreed. If you request the organisation to collect a payment, confirmation of the amount and date will be given to you at the time of the request
- If an error is made in the payment of your Direct Debit, by the organisation or your bank or building society, you are entitled to a full and immediate refund of the amount paid from your bank or building society
 - If you receive a refund you are not entitled to, you must pay it back when the organisation asks you to
- You can cancel a Direct Debit at any time by simply contacting your bank or building society. Written confirmation may be required. Please also notify Positive Energy Limited.

As you have provided your bank account details for the sole purpose of creating a Direct Debit Mandate, and you have heard the Direct Debit Guarantee, the information you have supplied during this call will be used to create your Direct Debit Mandate with **Positive Energy Limited** without the need for you to complete any further paperwork. This is subject to the information you have provided passing **Positive Energy Limited's** verification process.

Positive Energy Limited will be applying for the transfer of your **[Gas/Electricity]** supply to commence on **[Preferred Start Date]** and your contract will end in **[contract term: 1/2/3 years]**. Any changes to your Preferred Start Date will not affect the term of the contract, and that the Contract End Date will move in line with the Actual Start Date to fulfil the full term of the contract you are agreeing to.

Positive Energy Limited require an opening meter read to open your account on actual data. This meter read must be supplied to **Positive Energy Limited** up to two days before or two days after supply commences. Failure to provide an opening meter read may incur additional charges. Do you confirm that you will provide **Positive Energy Limited** a meter reading between 2 days before and 2 days after your energy supply commences?

Please wait for the customer to confirm before continuing

Positive Energy Limited after accepting your contract will send you details using the email address you supplied earlier in this call, which is used to access your Customer Portal where you are able to manage all aspects of your energy account. **Positive Energy Limited** will notify you via email when your invoice is ready to be viewed within your Customer Portal. **Positive Energy Limited** do not offer paper billing by default, but this service is available at the cost of £2.00 per invoice raised. Do you wish to receive paper bills and incur this cost, or are you content to manage all aspects of your energy account via your online Customer Portal?

Please wait for the customer to confirm before continuing

I'm pleased to say we are very nearly at the end of completing your verbal contract for **Positive Energy Limited** to become your energy supplier. I just require you to state clearly you are happy with all of the information that you have provided during this call, and you give your full permission for the recording of this call to be forwarded to **Positive Energy Limited** as a legally binding contract regarding the supply of your **[gas/electricity]**?

Please wait for the customer to confirm before continuing

Are there any questions that would like to ask before finishing this call?

Please wait for the customer to confirm before continuing

If you have any questions in the future, please either contact me personally [your name, your organisation, your phone number] or alternately, contact **Positive Energy Limited's** Customer Care Team on 0333 370 9900. Congratulations! Everybody from [your organisation] and **Positive Energy Limited** thank you for taking the time to complete this legally binding verbal contract.

End Call